

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DANTE SMITH,

Petitioner

VS.

CIARRA WALKER-SMITH,

Respondent

) Case Number: FPT-23-378122

) Hearing Date: July 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Dante Smith (Father) and Respondent Ciarra Walker-Smith (Mother).
- 2) On June 5, 2026, Mother filed an Order to Show Cause and Affidavit for Contempt alleging 5 counts of contempt committed by Father. The matter is set for hearing on July 16, 2026.
- 3) As of July 9, 2026, no proof of personal service of the Order to Show Cause and Affidavit for Contempt has been filed with the Court.

B. Findings and Order

- 1) Per *Cedars-Sinai Imaging Medical Group v. Superior Court* (2000) 83 Cal.App.4th 1281, personal service of Order to Show Cause and Affidavit for Contempt-on-contempt citee (i.e., Father) is required.
- 2) As such, the matter is hereby **continued to August 27, 2026, at 9:00 a.m. in Department 403** to permit Mother to effectuate personal service on Father.
- 3) The Court will prepare the Findings and Order After Hearing.